

CARRIER SERVICES AGREEMENT

Between Contoso Distribution Center Fargo (the customer) and Adatum Cargo B.V., Waalhaven 12, Rotterdam, Netherlands (the carrier).

Subject: less-than-truckload transport from the Fargo distribution center. Synthetic demo contract.

1. Term and renewal

The agreement runs for 24 months from the effective date and then renews for periods of 24 months unless a party gives written notice at least 6 months before the end of the current period.

2. Rates

Base rate for the lane Fargo-Minneapolis is USD 19.20 per 100 kg for less-than-truckload. Other lanes follow Schedule A.

3. Fuel surcharge

A fuel surcharge applies as published monthly. The surcharge is not capped.

4. Payment terms

Invoices are payable within 45 days of receipt of a correct invoice.

5. Price adjustment

Rates are adjusted on each anniversary by the change in the consumer price index plus 2.0 percentage points. There is no upper limit.

6. Service levels

The carrier targets an on-time delivery rate of 96 percent per month. If the rate falls below 94 percent, the customer receives a service credit of 3 percent of that month's invoiced freight.

7. Liability and claims

Liability for loss or damage is limited to USD 6.00 per kg of the affected goods. Claims must be filed within 21 days of delivery.

8. Data protection

Shipment and consignee data may be processed by subprocessors in any country without prior notice. Personal data breaches are reported within 14 days.

9. Termination and exit

The customer may terminate for convenience with 180 days' written notice and a fee of 10 percent of the preceding twelve months' spend.